

		Plaintiff Erika Espina. (Cal. R. Ct., R. 3.1362(d) [“The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.”].) IT IS ORDERED THAT Counsel must provide such proof of service within five (5) days of this ruling.
12	30-2024-01384236 Doe vs. Pacific Dental Services, LLC	Defendant Pacific Dental Services, LLC (“PDS”), Amardeep Gill and Reymond Bautista Dental Corporation (“El Cerrito”), and Dhaval Patel and Amardeep Gill Dental Corporation’s (“Alamo Smiles”) (collectively, “Defendants”) Motion to Compel Further Responses to Interrogatories from Plaintiffs Janet Doe and Jane Doe (collectively, “Plaintiffs”) is DENIED AS MOOT as to the Special Interrogatories propounded by Defendants El Cerrito and Alamo Smiles, who have since been dismissed from this action. Contrary to PDS’ contention in its reply, only “the propounding party may move for an order compelling a further response . . .” (CCP § 2030.300(a) [emphasis added].) The court also DENIES the Motion as to PDS’ Special Interrogatory (“SROG”) (Set One) Nos. 3, 7, 25–28, 30–32, 34, and 38 propounded on Plaintiff Jane Doe (“Jane”). The court finds that, under the circumstances, Jane’s responses adequate and code-compliant. <u>SROG Nos. 3 and 7</u> These interrogatories ask which dates Jane visited Defendant El Cerrito’s website and which parts she visited, and Jane responded by referencing a text document containing her browser history and identifying the parts of the website that she visited. Defendants complain that the browser history is thousands of pages long, but Plaintiff contends that the documents are legible to Plaintiffs’ counsel, understandable by Defendants’ experts, and are large text files (.json) that can be searched using the Control+F functionality. “If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer

		to this section and to specify the writings from which the answer may be derived or ascertained.” (CCP § 2030.230 [emphasis added].) “This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.” (<i>Id.</i>) “There is statutory precedent in California for placing the burden of research on the propounder of the interrogatory where the records from which the research is to be done are equally available to him.” (<i>Bunnell v. Superior Ct. of Alameda Cnty.</i> (1967) 254 Cal. App. 2d 720, 724.) For example, “where the answer to an interrogatory may be derived or ascertained from the business records of the party to whom such interrogatory is addressed, it is a sufficient answer to such interrogatory to specify the records from which the answer may be derived or ascertained and to afford to the propounder a reasonable opportunity to examine such records and to make copies thereof or compilations, abstracts or summaries therefrom.” (<i>Id.</i>) “Upon analogy, it becomes apparent that when the material to be ‘discovered’ consists . . . solely of information available to both parties, it defeats the purpose of the Discovery Act to compel one party to perform another party's research, whether such be laborious or not.” (<i>Id.</i>) In <i>Bunnell</i>, a party was asked to identify witnesses and the response was essentially “persons mentioned at prior trials and depositions.” (<i>Id.</i> at 722.) The appellate court found that response sufficient because there was “nothing to discover insofar as the identity of the witnesses is concerned in view of plaintiff's answer that there are no witnesses other than those mentioned in the depositions and at the previous trials, transcripts of which are in defendant's possession.” (<i>Id.</i> at 723.) “[T]he question is <i>who</i> will have the onus of researching these transcripts for the purpose of listing the names of the witnesses in order to lay a foundation for the exclusion of witnesses whose identity has not been disclosed.” (<i>Id.</i>) The court concluded that the onus was on the propounding party because “the purpose of the Discovery Act is to permit a party to prepare himself for trial, not to require one party, at his expense, to prepare the case for his opponent.” (<i>Id.</i>) Here, Jane identified specific documents from which Defendants can search for the requested information. The burden to locate that information is equal for both parties and their experts, so the onus should be on Defendants as the propounding party to do the research to find the requested
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information. Accordingly, no further response from Jane is required.

SROG Nos. 25-28

These interrogatories seek facts regarding the personal information purportedly collected by the trackers on Defendants' websites and how Jane learned of the trackers. In response, Jane states: "Plaintiff clarifies that she, as a layperson, does not possess any personal knowledge, information, or documents regarding the specific details of how and where from Defendant's obtained her personal information and therefore cannot respond to this request at this time and relies on her expert(s) regarding the specific details of Defendant's alleged disclosure of her personal information." Plaintiffs contend that the information responsive to these interrogatories regarding the functionality of the trackers are within Defendant's knowledge and possession.

Defendant provides no evidence that Jane has the technical or other factual knowledge of what information is collected by the trackers on Defendants' websites, or that she is withholding any responsive information. The court finds that no further response from Jane is required.

SROG Nos. 30-32 and 34

These interrogatories seek facts regarding the alleged disclosure of Plaintiffs' personal information by Defendants. Jane objected to this discovery request, asserting that the requested information is within the purview of Defendants and her expert(s). Plaintiffs contend that the only documents and information that exist are expert/lawyer work product from before the filing of the complaint, and Defendant said it did not want that. Plaintiffs contend that the information responsive to the request will be in documents produced by Defendant. Jane states that she has requested this exact information from Defendant, but Defendant has refused to produce it.

Defendant provides no evidence that Jane has the technical or other factual knowledge of Defendant's disclosure of personal information, and she has explained that she cannot respond to the request without access to Defendant's documents. The court finds that no further response from Jane is required.

SROG No. 38

		This interrogatory seeks information regarding the dates that Jane received online advertisements. Jane stated in response: “Plaintiff does not currently recall the exact dates she received any advertisements following her use of https://www.dentistsofclercerritoplaza.com/. Plaintiff expressly reserves the right to supplement or amend this response as new information is learned.” The court finds that this response is adequate, and Defendants have provided no evidence that Jane is withholding any information regarding targeted online advertisements. No further response from Jane is required. Defendants are ordered to give notice of this ruling to Plaintiffs.
13	30-2025-01537543 Tapia Cruz vs. Aero Power Services, a California corporation	Defendant Aero Power Services’ (“Defendant”) Motion to Compel Arbitration of Plaintiff Alejandra Tapia Cruz’s (“Plaintiff”) Individual Claims and for Dismissal of Class Claims is GRANTED. IT IS ORDERED THAT Plaintiff’s individual claims in this action are compelled to arbitration pursuant to the parties’ arbitration agreement, Plaintiff’s class claims are dismissed, and this action is STAYED pending completion of arbitration. The court sets an ADR status conference for February 18, 2027 at 9:00 a.m. The court SUSTAINS Defendant’s objections to Plaintiff’s counsel, Gabriella Sole’s declaration regarding Plaintiff’s language skills as counsel’s statements lack foundation. The court concludes that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff and that no grounds exist to bar enforcement of the agreement. (CCP § 1281.2.) The parties do not dispute the existence of the September 1, 2023 arbitration agreement signed by Plaintiff when she began her employment with Defendant. (Phuong Dec. ¶¶ 4-5, Ex. A.) The court finds that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. “The United States Supreme Court has identified “three categories of activity that Congress may regulate under its commerce power: (1) ‘the use of the channels of interstate commerce’; (2) ‘the instrumentalities of interstate commerce, or persons or things in interstate commerce, ...’; and (3) ‘those activities having a substantial relation to interstate commerce, ... i.e., those